

# Tab 30



## Board of Education Report

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**File #:** Rep-101-23/24, **Version:** 1

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### **Amendment to Board Rules 131 and 135**

**October 17, 2023**

**Office of the Board Secretariat**

#### **Action Proposed:**

Increase the number of speakers allowed for general public comment from 15 to 20; Increase item specific comment from 7 to 10; reduce the public comment time allotment to two minutes from three minutes; public comment at Board committees to be determined by committee chair with a minimum allotment of 10 slots at any particular committee.

The proposed rule changes are as follows:

Board Rule 131(B): “B. The number of speakers on any one topic or agenda item shall be limited to ~~seven (7)~~ ten (10) unless otherwise directed by the Board. There shall be no more than ~~fifteen (15)~~ twenty (20) speakers at a Regular Board meeting on issues not before the Board for action on that day. (Time allocation is governed by Rule 135.)

Board Rule 131(C) “~~Speakers to Board Committees shall not be required to sign up to speak in advance of the meeting, unless otherwise directed in advance by the Chairperson of the Committee and noted on the agenda for the meeting. (Board Rule 144).~~ For all Board committees, the number of public comment slots and the duration of each public comment shall be determined by the committee chair and noticed in the agenda for each particular committee. Under no condition shall there be fewer than 10 slots for public comment at any given committee. For all committee types, any single public comment slot shall have a minimum duration of one minute.

Board Rule 131(F) “Speakers to items required by law and duly noticed to be ‘Public Hearings’ will be limited to ~~12 fifteen (15)~~ speakers with an allotment of 2 minutes each and efforts will be made to balance the presenters for their viewpoints.”

Board Rule 135: “Each speaker will be allowed a single appearance at any Board meeting of the Board of Education and a time allotment of ~~three two~~ minutes or for a period designated on the Order of Business or agenda for the meeting with exceptions to fulfill requirements regarding public hearings. (Government Code Section 54954.3[b].)”

#### **Background:**

The Board of Education encourages vigorous public comment and participation. To that end the Board entertains multiple hours of comment per meeting. It has become apparent however that there is a paucity of disparate viewpoints. By increasing the number of public comment speaker slots there will be a wider variety of positions on particular issues. In order to accommodate additional public speaking slots while ensuring a reasonable amount of time for public comment overall, the amount of time allotted for each slot is reduced by

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one minute for general public comment and public hearings, and by two minutes for item specific comment. This results in a two-minute allotment for general public comment and public hearings, and a one minute allotment for action specific items.

**Expected Outcomes:**

Increase in diversity of public comment viewpoints.

**Board Options and Consequences:**

Approval of the proposed rule changes will increase the opportunity for a variety of viewpoints, and increase the likelihood that interested parties will be able to sign up to share their views.

Denial of the proposed rule changes will maintain the status quo, ensuring a minimum variety of viewpoints on issues.

**Policy Implications:**

Action requested requires the amendment of Board Rules 131 and 135.

**Budget Impact:**

None.

**Student Impact: Not applicable.**

**Equity Impact: Not applicable.**

**Attachment: Proposed Amendment to Board Rules**

**Informatives: None.**

### 131. PRESENTATIONS TO THE BOARD

Any person as an individual, or as a representative of a group, shall be granted permission to address the Board of Education by oral presentation at a regular meeting of the Board concerning any subject that lies within the jurisdiction of the Board, provided the requirements and procedures herein set forth are observed:

A. A request to address the Board shall be made prior to the item being before the Board for action on a first come first served basis. Requested information from the presenter will include name, address, and telephone number, name of group represented, if any, and a concise statement describing the exact nature of the subject or subjects to be discussed. Each presenter must make his or her own request to speak.

B. The number of speakers on any one topic or agenda item shall be limited to seven (7) unless otherwise directed by the Board. There shall be no more than ~~fifteen (15)~~ twenty (20) speakers at a Regular Board meeting on issues not before the Board for action on that day. (Time allocation is governed by Rule 135.)

1. Speakers making a presentation on an item or items on the Board agenda must constrain their remarks specifically to the item or items or may be ruled out of order. Persistence in making remarks causing such a ruling may be grounds for summary termination, by the Chair, of that person's privilege to address the Board at that time.

2. The allotted number of speakers addressing issues not before the Board for action that day shall be filled in the order requests are made.

3. There is nothing in this Rule that precludes the Board from amending these rules when necessary.

4. One designated representative from each of the following advisory groups:

LCFF/LCAP Parent Advisory Committee (PAC), District English Learner Advisory Committee (DELAC), Community Advisory Committee (CAC), 10th District PTA, 31st District PTSA and the Special Education Advisory Committee (CAC) can be

added to the Speaker's List in addition to the 15 speakers at any Regular Board meeting on issues not before the Board.

C. ~~"Speakers to Board Committees shall not be required to sign up to speak in advance of the meeting, unless otherwise directed in advance by the Chairperson of the Committee and noted on the agenda for the meeting. (Board Rule 144)."~~ For all Board committees, the number of public comment slots and the duration of each public comment shall be determined by the committee chair and noticed in the agenda for each particular committee. Under no condition shall there be fewer than 10 slots for public comment at any given committee. For all committee types, any single public comment slot shall have a minimum duration of one minute.

D. The President, with the concurrence of the Board, may call a special meeting for the sole purpose of hearing speakers.

E. At any hearing, called in accordance with Rule 131-D above, there shall be a limit of 40 speakers (unless otherwise directed by the Board in the public notice) listed in the order received, except that an attempt shall be made to alternate points of view "pro" and "con" if at all possible. An opportunity shall be provided, upon request, for an exclusive representative of each of the District's collective bargaining

units to address the Board at the hearing as part of the 40 speakers. If there are multiple hearings on the same topic, a speaker may be permitted to address the Board a second time only after everyone who has sought a first opportunity to speak has been accommodated.

F. Speakers to items required by law and duly noticed to be “Public Hearings” will be limited to ~~12~~ **fifteen (15)** speakers with an allotment of 2 minutes each and efforts will be made to balance the presenters for their viewpoints.

Speakers to these items can sign up on a first come first served basis at the meeting where the Public Hearing is held. Speakers to Public Hearing items can speak in addition to their single appearance delineated in Board Rule 135.

G. The Board urges that charges and complaints against Los Angeles Unified School District personnel or employees be submitted to the Board in writing. This allows the Board to more carefully examine the complaint and to initiate an investigation when necessary. If a complaint is made orally, the Board may request that the individual making the complaint provide additional information to facilitate an investigation. The Board may also afford the District employee, about whom a complaint is made, the opportunity to respond either orally or in writing at the same time or at a subsequent Board meeting.

H. Oral presentations to the Board are subject to further provisions contained in Board Rules 132 to 139.

I. The Board may deviate from the scheduled Order of Business and establish a time certain to hear speakers to nonagenda items and Miscellaneous Business or any other item on the Order of Business.

J. In order to accommodate the schedules of teachers, staff, students, families and community members, for Board Meetings beginning at 1:00 p.m., public comment shall begin at 4:00 p.m. To the extent possible, the Order of Business will reflect specific times for public comment. For example, when a Board Meeting begins at 1:00 p.m. and may end earlier than 4:00 p.m. the Board will recess at such time and reconvene at 4:00 p.m. to hear public comment.

Notwithstanding the foregoing provisions of this Rule, courtesy will be extended to elected and appointed officials of other jurisdictions. The President may deviate from the scheduled Order of Business and waive the normal three-minute limit as necessary to accommodate officials who wish to address the Board. The President may also, with the consent of the Board, modify the number of speakers and allocated time as necessary to efficiently conduct the District’s business.

(Education Code Section 35145.5 and Government Code Section 54954.3.)

(Amended 1-16-18 BOE Report 213-17/18, Amended 8-26-14, previously Amended 9-22-09, BOE 94-09/10)

### 135. TIME ALLOTTED

Each speaker will be allowed a single appearance at any meeting of the Board of Education and a time allotment of ~~three~~ **two** minutes or for a period designated on the Order of Business or agenda for the meeting with exceptions to fulfill requirements regarding public hearings.

(Government Code Section 54954.3[b].)”

(previously amended 8-26-14, previously amended 5-20-96)

(Amended by 09-03-19 Reg Bd Bd Rpt 360 Amendment Attachment E See Board Rule 159)

(Amended 9-11-07)